

it is marked by two white lines painted on the surface of the asphalt driveway. While he was walking in front of the fire hall, Mr. Richer slipped and fell on a patch of ice. He suffered very serious injuries to his right leg as a result of this fall, so serious in fact that he has not worked since the day of the accident. Accordingly, he has issued this claim against the City of Elliot Lake for damages arising out of this his fall.

ISSUES and LEGAL PARAMATERS

- [5] The Defendant municipality has admitted that the fall occurred on a municipal sidewalk and that the Plaintiff gave timely notice in compliance with the Municipal Act 2001, S.O. 2001, c. 25 as amended. The parties have also come to an agreement on the quantum of the damages sustained by Mr. Richer resulting from the fall. The sole issue for this court to decide is whether the Defendant municipality failed in its duty to maintain the sidewalk.
- [6] The parties agree that the provisions of s.9 of the Municipal Act, 2001 apply to the circumstances of this case. This section provides that ...

s. (9)...Except in case of gross negligence, a municipality is not liable for a personal injury caused by snow or ice on a sidewalk.
- [7] The plaintiff therefore has the burden of proving, on the balance of probabilities that any failure by the municipality to maintain the sidewalk amounted to gross negligence.
- [8] The provisions of the Negligence Act, R.S.O. 1990, c. N.1 as amended apply to this case and accordingly, if this court finds gross negligence on the part of the Defendant, it is open for this court to find that there was contributory negligence on the part of Mr. Richer.

FACTUAL FINDINGS

1) Weather Conditions prior to the Accident

- [9] The plaintiff argues that the icy condition of the sidewalk arose as a result of a thaw-freeze cycle which occurred in the city during the days preceding the fall. The weather conditions during this time period are therefore relevant.
- [10] Surface weather records prepared by the Meteorological Service of Canada and by Environment Canada for November 12, 2003 and November 13, 2004 were filed with the court.
- [11] The records indicate that on November 12, 2003, the day before the fall, conditions throughout the day were wet and foggy. Temperatures ranged from a low of 0.2 degrees

Celsius early in the day and increased to a high of 6.4 C. degrees Celsius by 3 p.m. It was 5.7 degrees Celsius at 6 pm. and 5.5 C. degrees Celsius at midnight. Total rainfall or precipitation for the day was recorded at 10.4 mm.

- [12] On November 13, 2003 which is the day of the accident the weather records indicate that the temperatures started out at just below 0 degrees Celsius in the early morning, and then gradually decreased throughout the day. The temperature at 12 noon was -3.4 degrees Celsius, and by 6 pm it had dropped to -6.6 degrees Celsius. The records indicate that snow was falling at 7 a.m, and continued into the evening, for a total snowfall accumulation of about 2 cm or close to one inch.
- [13] Mr. Richer testified that he left for work at 8: 30 a.m. on the day of the accident. He recalls that when he was walking to work the sidewalks were bare and dry, and it was not snowing.
- [14] Mr. Richer first observed snow falling at about 10 a.m or 10:30 a.m. He could see the snow while looking through a window at work, and he recalls that because it was snowing he decided not to go outside during his mid morning break. He recalls that snow continued to fall throughout the day, and that the sidewalks were snow covered when he left work at 5:30 p.m.
- [15] Mr. Andre Richer is the son of the Plaintiff, Walter Richer. He testified that his mother called him sometime between 6:30 P.M. and 7:30 P.M. and informed him that his father had fallen and had been taken to the hospital. Mr. Richer drove his mother to the hospital and thereafter he attended at the scene of the fall and inspected the sidewalk. He believes it was only snowing lightly or sporadically when he arrived at the fire hall. The following morning he returned and took photographs of the site.
- [16] Mr. John Thomas is a captain with the Elliot Lake fire department. He was on duty at the Fire Hall on Hillside Dr. N. on Nov. 13, 2003. As he was completing his shift at about 6 p.m. he observed an ambulance in the area in front of the fire station and paramedics attending to a patient. He assisted the paramedics with placing Mr. Richer in the ambulance. He recalled that the ground was lightly snow covered at the time. When he was asked about the weather conditions he stated that he recalled that there had been light flurries during the day. Mr. Thomas commenced his shift at 8 a.m. that morning and he recalled that there was a covering of snow on the ground when he drove to work.
- [17] Counsel for Mr. Richer requests the court to disregard his client's evidence with respect to his observations of the sidewalk and weather conditions on his way to work. He urges the court to find that the sidewalks were in fact wet and snow covered. He bases this request on the fact that his client's evidence is inconsistent with much of the other evidence. Also, because it had rained the day before, the sidewalks could not have been bare and dry as reported by his client.
- [18] Counsel for the Defendant municipality requests the court to accept Mr. Richer's evidence that the sidewalks were bare and dry when he walked to work. He points out

that the Elliot Lake Airport, which is where the weather data is collected, is about 8 kilometres from the town of Elliot Lake and the snow fall which was reported to have been falling at the airport at 7 a.m. on Nov. 13, 2003 may not yet have reached the town centre at the time Mr. Richer was walking to work.

- [19] Counsel for the defendant also argues that although it had rained the previous day, water does not remain above sidewalks in suspended animation, but drains away and evaporates. Any moisture which had fallen on the sidewalks the previous day would have had ample time to drain away or evaporate by the time the temperatures dropped below freezing sometime in the early morning hours of November 13, 2003.

Findings of Fact

- [20] The preponderance of the evidence points to the fact that it was already snowing at the time Mr. Richer walked to work on the morning of November 13, 2003, and that the sidewalks would therefore have been lightly snow covered. This evidence includes the meteorological reports, as well as the oral testimony of John Thomas. In fact, the only evidence put forward in support of a finding that it was not snowing and that the sidewalks were bare is the evidence of Mr. Richer himself.
- [21] On the evidence before me, I find as a fact that it was snowing in Elliot Lake at the time Mr. Richer walked to work. I find that it continued to snow throughout the day, albeit not heavily and that there was an accumulation of up to several inches of snow on the ground by 6 p.m., which is when Mr. Richer fell and injured himself.
- [22] I am not surprised that Mr. Richer does not have a perfect recall of the weather and sidewalk conditions on the morning of November 13, 2003. He suffered a serious injury later that day, and I would expect that thereafter his mind would be focused on the weather and sidewalk conditions at the time of the fall, and not the weather conditions in the morning.
- [23] In addition, Mr. Richer testified that his walk to work that day was quite uneventful. There was no reason therefore why the weather and road conditions would have been particularly memorable for him. Mr. Richer was a dedicated walker. He wore good walking shoes. He was quite prepared to walk home that evening, through the snow, carrying a bag of bird feed and some groceries. I fully expect that he would hardly have noticed the relatively insignificant amount of snow which was falling and which had accumulated on the sidewalk on his way to work that morning.

2) Condition of Sidewalks at time of Accident

- [24] The first part of Mr. Richer's walk from work to downtown Elliot Lake involved a walk along the north side of Spine Road, in an easterly direction. There is no sidewalk on Spine Rd. so Mr. Richer walked on the road. Mr. Richer testified that notwithstanding the fact that it had snowed all day, he experienced no difficulties walking on this road. When he reached the end of Spine Rd. he continued walking in an easterly direction, on the sidewalk on the north side of Hillside Dr. N. Although the sidewalk was covered

with a thin layer of snow, Mr. Richer testified that encountered no difficulties with ice or snow while walking along the north side of Hillside Dr. N.

- [25] After he had walked for several blocks along the north side of Hillside Dr. N., Mr. Richer crossed the road to the sidewalk on the opposite side, and continued his walk along Hillside Dr. N. in what would now be a north easterly direction. When he reached the area where the asphalt driveway of the fire station intersected the sidewalk he slipped and fell.
- [26] Although the sidewalks on Hillside Dr. N. were covered with a thin layer of snow, Mr. Richer testified that he did not encounter any difficulties walking on these sidewalks. Neither did he encounter any difficulties when he walked across Hillside Dr. N. He agreed that at no time did he slip, or slide or fall or trip from the time he left the hospital until he fell. The distance from the hospital to the fire station is about three quarters of a kilometre.
- [27] When Andre Richer returned to the scene on the morning of November 14, 2003 he was able to determine the exact location of the fall by the blood on the ground. He observed that there was a patch of ice adjacent to the blood, and he believes his father fell on this patch of ice.
- [28] Andre Richer does not believe it continued to snow during the night after the fall. He believes that the photographs he took the following morning, which were made exhibits at the trial, depict the conditions of the location of the fall as they were at the time of the fall.
- [29] Andre Richer's evidence that it did not continue to snow throughout the night after his father fell is supported by the weather reports and the evidence of other witnesses and I accept that the pictures provide a reasonably accurate portrayal of the sidewalk area at the time the Plaintiff suffered his fall, which was around 6 p.m. on the evening of Nov. 13, 2003.
- [30] The photographs depict an area of asphalt on which white painted lines define what serves as the pedestrian sidewalk at that location. The ground is covered with a light layer of snow, perhaps one or two inches. A small icy patch approximately 12 inches in diameter, adjacent to an area where some blood is pooled, is clearly visible. There is no evidence whatsoever of any sand at the scene. The snow is white, and there are no traces of sand on the asphalt in those areas where the snow has been brushed away and the asphalt is exposed.
- [31] Andre Richer testified that he worked out of town on the day of the fall. His inspection was restricted to the immediate area of the fall. He did not walk on the sidewalks of Elliot Lake that day and therefore cannot comment on the condition of the sidewalks generally.
- [32] Ms. Rolande Riddell testified that she was driving on Hillside Dr. in the area of the Fire hall at between 5 and 6 p.m. on Nov. 13, when she saw Mr. Richer fall. She stopped her

vehicle and went over to Mr. Richer to render assistance. She did not experience difficulty walking up to Mr. Richer but she believes the sidewalk area was slippery. She stated that she was focused on Mr. Richer's distress and therefore she did not have a good recall of the weather and road conditions at the time. She does not recall whether the ground was snow covered or whether she observed any sand on the sidewalk. She did not recall whether she worked on the day of the fall but if she did she would have driven to work. She did not walk on the sidewalks of Elliot Lake that day and therefore could not comment on the condition of the sidewalks generally.

- [33] John Thomas testified that he recalled that there was a light layer of snow on the ground at the time he was assisting the paramedics with Mr. Richer. He recalled that there were light flurries during the day. He did not see any ice on the ground in front of the fire hall and he did not have any difficulty moving around. He recalled that earlier in the day he noticed that the ground was slippery and snow covered and he believes there was quite a bit of wind.
- [34] Jody Saunders was driving on Hillside Dr. N. when she saw Mr. Richer fall. She stopped her vehicle and walked from the side of the road to lend assistance to Mr. Richer. She recalls that the ground on which she walked to reach Mr. Richer was slippery, but she does not recall whether it was snow covered. She believes she stayed at home with her children that day and did not walk on any of the sidewalks of Elliot Lake. She was therefore unable to provide helpful information about the condition of sidewalks in the city of Elliot Lake generally.

Findings of Fact

- [35] Counsel for Mr. Richer argues that the weather conditions on November 12 and 13, 2003 created what he refers to as a thaw-freeze cycle in Elliot Lake on November 13, 2003 and that this resulted in the conditions which caused Mr. Richer to fall.
- [36] I agree that the conditions were such that a thaw-freeze cycle was created. Clearly, any moisture which had accumulated as a result of the warm and wet conditions which prevailed on November 12, 2003, and which remained on the ground on Nov. 13, 2003, would have been subject to freezing and would have resulted in icy conditions when the temperature dropped below 0 degrees Celsius in the early hours of November 13, 2003.
- [37] I accept the evidence that there was an icy patch on that portion of the asphalt driveway in front of the fire hall which was designated as a sidewalk, and that this icy patch caused Mr. Richer to fall. I also find that the most reasonable explanation for the existence of this icy patch is that moisture had accumulated on the asphalt and that this moisture froze and created an icy patch sometime on November 13, 2003, after the temperatures fell below freezing.
- [38] Mr. Andre Richer conducted a very close examination of the area in the immediate vicinity of the icy patch and could not find evidence of any sand. This evidence is

supported by the photographs which he took of the scene. I find as a fact that there was no evidence of sand in the area where the icy patch had formed.

- [39] I do not find however that the evidence establishes that on the evening of November 13, 2003, the condition of the sidewalks in the city of Elliot Lake generally was such that they were slippery or icy. Mr. Richer readily admitted that he experienced no difficulty walking on the sidewalks on his walk to work in the morning. Significantly, he also testified that he experienced no difficulties walking from the hospital to the downtown area. The one and only time he experienced an unsafe condition was when he stepped on what he believes was an icy patch on the asphalt driveway in front of fire hall.
- [40] The evidence of the other witnesses does not help to establish the condition of the city sidewalks generally, at the time of the fall. Ms. Saunders and Ms. Riddell testified that the area in front of the fire hall was slippery but they were unable to comment on the condition of the sidewalks generally because they did not venture out on to the sidewalks that day. Mr. Andre Richer's investigation of the sidewalk conditions was limited to the area in front of the fire hall. Mr. Thomas testified that although he had noticed earlier that day that conditions generally were slippery, he stated he did not experience any difficulty walking in the area of the fall. There is simply no evidence on which to base a finding that the sidewalks throughout the city were slippery and hazardous, or that the icy patch on which Mr. Richer fell was anything but an isolated instance of ice having formed on the sidewalk.

3) Steps taken by the Defendant Municipality to Maintain the Sidewalks for Pedestrians

- [41] The policies which govern the removal of snow from city sidewalks are contained in a document entitled "Public Works Department...Activity Profiles and Objectives". The relevant sections of this policy are as follows:

7) Sidewalk Clearing

Sidewalk plowing and blowing activities will commence as soon as snow accumulation has reached 4 centimetres. Sidewalk clearing operations in the C.C.A. must be carried out after or before store hours only. Residential sidewalks should be scheduled during nightshifts operations. Daytime clearing is permitted but caution must be exercised due to pedestrian traffic.

8) Sidewalk Sanding (Equipment)

Sidewalk sanding operations will commence whenever conditions for pedestrian traffic are unsafe. Sidewalk sanding shall occur on the first available non-

overtime shift after clearing operations are completed. Sanding rates shall be determined by prevailing conditions.

- [42] Mr. Robert de Bortoli gave evidence on behalf of the City of Elliot Lake. He has been employed with the city since 1975 and is presently employed as Chief Administrative Officer. In November, 1973 he was employed as Operations Manager...Public Works and Water and Wastewater plants. In this capacity he was responsible for ensuring that the Public Works Objectives were carried out.
- [43] Mr. de Bortoli testified that snow removal and sanding operations are carried out using a piece of equipment called an M.T. Trackless. An M.T. Trackless is specifically designed for snow clearing and sanding purposes. A plough or snow blowing device is attached to the front of the M.T. Trackless, which is then driven along the city sidewalks by a city employee. The M.T. Trackless pulls a pup trailer behind it which drops sand, to which is added a small amount of salt, on the freshly plowed or blown sidewalk. The amount of sand which is deposited is adjusted in accordance with the conditions at the time.
- [44] Mr. de Bortoli testified that in November, 2003 the City of Elliot Lake had 4 M.T. Trackless machines. The work which is carried out by the city employees is recorded on what are called "Crew Cards". The nature of the work performed, the number of hours such work is performed, and in the case of sanding activities the amount of sand used during the operation is recorded on the crew cards. A separate crew card is completed for each activity which is carried out by the employees. Therefore, an employee who operates an M.T. Trackless would fill out one crew card with respect to the plowing part of his work and a separate card with respect to the sanding part. The City has 76 kilometres of sidewalks.
- [45] Mr. de Bartoli produced crew cards signed by three employees who were involved in the snow removal and sanding operations on November 13, 2003. The crew cards indicated that two of the employees carried out snow removal and sanding operations for 6 hours on November 13, 2003 and a third employee performed this work for 4 ½ hours. The Crew cards indicate the employees distributed a total of 5 cubic meters of sand and that they performed this work on "all areas" and on 76 kilometres of sidewalk. The work was performed during the day shift which ran from 7:30 A.M. to 3:30 P.M. The work was carried out by Bruce Fast, the crew chief, and Renee Blais and Mario Gagnon, all of whom are experienced M.T. Trackless operators.
- [46] Mr. de Bartoli confirmed that he could not locate a record of any complaints concerning the condition of the sidewalk on Hillside Drive N. on the day in question.
- [47] In November, 2003 Mr. Robert Brisbois was employed as Public Works Superintendent for the City. It was his responsibility to determine when a sufficient amount of snow had fallen to trigger the order to plow and sand the sidewalks. He was also responsible for inspecting the sidewalks. Mr. Brisbois, who is now retired, testified that he had been employed by the city from 1983 to 2006. As Superintendent, it was his responsibility to "take care of the crews". This involved handing out their assignments and inspecting

their work. He explained that when the crews were out, he would usually be driving around in a pick-up truck and inspecting the work.

- [48] Mr. Bruce Fast was one of the M.T. Trackless operators and was the designated crew chief. He testified that he had no specific recollection of having worked on November 13, 2003 but that he was usually the person who plowed and sanded Hillside Drive N. so it was quite possible that he was the person who plowed and sanded it on that day. He stated that when the crew members carried out this activity they would be in touch with each other by way of walkie talkie, and they would work together to ensure that all the sidewalks were completed. He explained that Hillside Drive N. is a main road and he was positive that it would have been plowed and sanded on the day in question. He testified that the amount of sand which was recorded as having been used that day (5 cubic metres) was the average amount used when sanding the sidewalks. In certain extreme conditions, such as freezing rain, the crew would apply more than 5 cubic metres.
- [49] Mr. John Thomas testified that before noon on November 13, 2003 he observed an M.T. Trackless which appeared to be carrying out plowing and sanding operations on the sidewalk in front of the fire station. The machine was visible from his office window in the fire hall.

Findings of Fact

- [50] I find as a fact that the City responded to the conditions which were created by the thaw-freeze and subsequent snowfall which occurred on November 13, 2003 by sending out three experienced M.T. Trackless operators, who plowed and deposited a sand-salt mixture on all of the city sidewalks that day. I base this finding on the information contained on the Crew Cards, and the oral testimony of Mr. Thomas who recalls seeing an M.T. Trackless being operated on the sidewalk in front of the fire-hall on the November 13, 2003. Although Mr. de Bartoli, Mr. Brisbois and Mr. Fast do not have a specific recollection of carrying out plowing and sanding operations that day, the evidence they provided with respect to the City's plowing and sanding-salting operations, policies and procedures support this finding.

DID MR. RICHER'S INJURIES OCCUR AS A RESULT OF THE GROSS NEGLIGENCE OF THE CITY?

- [51] I have found as a fact that the Plaintiff has established on the balance of probabilities that he slipped and fell on an icy patch which had formed on the City owned asphalt sidewalk in front of the fire hall. The City is therefore responsible for Mr. Richer's damages (subject to contributory negligence) if this court determines that the city was grossly negligent with respect to its duty to keep the sidewalk clear of snow and ice.

[52] The law with respect to what constitutes gross negligence is set out in the case of *Holland v. City of Toronto*.¹ In this case the Supreme Court of Canada approved a statement from one of its earlier cases describing “gross negligence” as “very great negligence”.

[53] In *Thum v. Elliot Lake*², a 1999 decision of Justice Ian Gordon of this court, Justice Gordon had this to say about the circumstances which can give rise to a finding of gross negligence at paragraphs 31 and 32 of his judgment:

31. Circumstances giving rise to a finding of "very great negligence" are as diverse as the weather conditions, municipal policies, equipment quality and quantity and condition, operator expertise, inspection particulars and other innumerable and unpredictable factors. It can be said that a trier must assess the actions of a municipality in the circumstances of each case.

32. Elements from the Holland case to be considered are:

- 1. Notice of the existence of a dangerous condition which authorities actually had or which should be imputed to them;
- 2. Their opportunity to remedy it;
- 3. The state of weather immediately before the accident;
- 4. The relative situation of the place where the accident occurred.

[54] In this case, it is clear that the municipality recognized that the weather conditions required remedial action on November 13, 2003. Three experienced operators were sent out to clear snow and apply sand and salt to the sidewalks. Mr. Fast and Mr. Blais were each engaged for 6 hours performing this task and Mr. Gagnon performed this work for a total of 4 ½ hours. The Crew Cards confirm that 5 cubic metres of sand was applied to the sidewalks.

[55] The records do not indicate that this work constituted overtime hours. These three employees commenced their workday at 7:30 a.m. and so it is fair to assume that the crews were sent out early in the morning. The City policy required that snow clearing activities commence after snow accumulation had reached 4 centimetres and I find that it is quite possible that the crews commenced that snow clearing and sanding work even before four centimetres of snow had accumulated.

[56] The overall effectiveness of the work carried out by these three individuals is supported by the testimony of the Plaintiff, who testified that he walked from the hospital to the downtown core, a distance of about .7 kilometres, without experiencing any problems

¹ *Holland v. City of Toronto*, [1927] S.C.R. 242

² *Thum v. Elliot Lake*, [1999] O.J. No. 3158

with slippery conditions. It is further supported by the fact that there were no complaints by other residents of ice or snow or unsafe sidewalk conditions on the day in question.

- [57] Counsel for Mr. Richer argues that this case is not unlike the *Thum* case referred to above. Mr. Thum died as a result of injuries he sustained when he fell on an ice covered sidewalk in the City of Elliot Lake. The City was held to be responsible, Justice Gordon making a finding of gross negligence against the City.
- [58] In my view, the facts in *Thum* can be distinguished from the facts in this case. In *Thum*, witnesses testified that there was “lots of quite thick ice the whole length of the sidewalk”. They testified that in the days preceding the fall they had chosen to walk on the street, as opposed to the sidewalk, due to the icy conditions on the sidewalk. The icy conditions had therefore lasted for a period of days, and these conditions were found to exist generally in the City. In the case before the court, there is no evidence that the sidewalks throughout the city were slippery and dangerous, or that icy conditions had existed for a period of time.
- [59] Mr. Thum’s fall also occurred following a thaw freeze cycle. However, notwithstanding this fact, the City crews failed to apply sand and salt on the day of the accident, choosing only to scrape the sidewalks. In the case before the court, the evidence is that a sand/salt mixture had been applied on all the city streets.
- [60] In *Thum*, Justice Gordon also found that if a proper inspection of the sidewalks had taken place, the city would have been aware of the icy conditions on the sidewalks. Mr. de Bartoli testified that it was Mr. Brisbois’ responsibility to send out snow clearing and sanding crews when the conditions warranted such activities. He explained that the nature of Mr. Brisbois’ position was such that he was in his truck continually, driving on the city streets, and he would therefore be aware of the sidewalk and street conditions at all times. Mr. De Bartoli also testified that he was confident of Mr. Brisbois’ ability to make decisions as to whether clearing and sanding operations were required, without the benefit of a defined written inspection policy, complete with checklists and testing equipment.
- [61] I am not convinced that a more sophisticated inspection system would have been of any benefit in the circumstances of this case. Mr. Brisbois, who has the benefit of many years of experience working for the public works department, apparently recognized that a freeze-thaw situation had developed, and that this required remedial action. Therefore, shortly after the temperatures had dropped below 0 degrees Celsius on the morning of November 13, 2003, crews were sent out and all the city sidewalks were cleared and sanded. With the exception of the area in front of the fire hall, there is no evidence that the sidewalks throughout the city were not cleared and sanded satisfactorily.
- [62] Finally, Justice Gordon criticised the City for not having a put in place a policy for winter maintenance. The City has now put in place for the benefit of its public works department a document which I have referred to earlier entitled “Activity Profiles and Objectives”, which includes a section dealing with winter operations. Although this

document is not extensive, and relies to a large degree on common sense and experience for its implementation, in my view it sets out adequate guidelines to be followed by the Public Works department to ensure that the city streets and sidewalks remain safe for drivers and pedestrians.

- [63] Counsel for the Plaintiff argues that the facts of this case can be compared to the facts in the case of *Ryan v. City of Sault Ste. Marie*³, a case presided over by Justice G. Tranmer of this court, and subsequently upheld by the Ontario Court of Appeal. In this case Justice Tranmer held the City of Sault Ste. Marie responsible for the damages which were sustained by Ms. Ryan on February 8, 2005, as a result of falling on an icy sidewalk. Justice Tranmer found that the actions of the city (or the lack thereof) in maintaining the sidewalks constituted gross negligence.
- [64] I find that the facts of *Ryan* case can also be distinguished from the facts in the present case. In *Ryan*, the Plaintiff fell while walking her 8 year old daughter to school. Justice Tranmer accepted the Plaintiff's evidence that it was her common experience that on the walk to school in the morning the sidewalks were often slippery and icy. It was also her usual experience that after school the sidewalks had either been cleared up or were not so slippery because they had been sanded during the day. This evidence was supported by another witness who had encountered similar conditions while walking her child to school. The evidence therefore indicated the icy conditions on the sidewalk were a common condition. In the present case, there is no evidence that icy conditions were present on the sidewalk in front of the fire hall on a regular basis, or that they were present on sidewalks elsewhere in the city.
- [65] In *Ryan*, the evidence was that the City of Sault Ste. Marie had divided the city into a number of different routes. The sidewalk on which Ms. Ryan fell was located in Route 8. There were 11 schools located in Route 8. The sidewalks were designated as Priority 1 or Priority 2 status. Priority 1 routes, as the term suggests, were to be cleared and sanded first, before the Priority 2 routes. Sidewalks leading to schools were given Priority 1 status. The equipment operator was also given a route map to follow.
- [66] Clearing and sanding operations for Route 8 were assigned to Mr. Mike King. Mr. King testified that even though the City had prioritized its sidewalks, he did not follow that priority. The reason why he chose not follow the priority guidelines was in his words "because they are all a priority to me". He stated that he followed the same route every day, regardless of the conditions that day, and that the route he followed was not the route prescribed by the City. As a result of Mr. King's decision not to follow the priorities

³ *Ryan v. City of Sault Ste. Marie* (2007) O.J., affirmed by Court of Appeal in *Ryan v. City of Sault Ste. Marie* (2009) O.J. No. 1730

which had been prescribed, the sidewalk on which Ms. Ryan fell was not cleared or salted until sometime after school had started. This was the reason Ms. Ryan and other parents regularly experienced problems with icy conditions on the sidewalk when walking their children to school, but less so later in the day when they walked them home.

- [67] The City of Elliot Lake has also prioritized the sidewalks. However, in the present case there is no evidence that the operators did not follow the priority guidelines.
- [68] Finally, in the *Ryan* case the evidence was that the icy conditions on the sidewalk resulted from a thaw/freeze weather cycle which made them highly conducive to icing. In such situations the City's Public Works night supervisor had the responsibility to consider and decide whether the sidewalk operators should be called out earlier than their normal start at 7:30 a.m. Justice Tranmer noted that it was significant that notwithstanding the fact that the conditions on the morning of Ms. Ryan's fall were highly conducive to ice forming on the sidewalks, the night supervisor was not called to provide evidence as to whether consideration had been given to calling out the sidewalk operators earlier in the day, and therefore ensuring that all sidewalks were safe prior to the start of the school day.
- [69] In the case before the court, the evidence was that the temperatures dropped to below freezing during the early morning hours of November 13, 2003 and the sidewalk operators were called out to perform their duties later that morning. Mr. Richer did not fall until later that day, after the sidewalk operators had completed their assignments. A failure to respond to the weather and sidewalk conditions in a timely manner was not a factor which can be said to be a factor in Mr. Richer's fall.

DECISION

- [70] The only evidence before the court which points to icy and slippery conditions on the sidewalks in the City of Elliot Lake in the early evening hours of November 13, 2003 is the evidence that there was a patch of ice on the sidewalk in front of the fire station. As I have already pointed out, Mr. Richer had already walked a distance of approximately .7 kilometres on the city streets and sidewalks before his fall, and he had experienced no slippery or icy conditions until he fell on the icy patch.
- [71] In the absence of any evidence that there existed icy and slippery conditions on the sidewalks elsewhere in the city, I can only conclude that the patch of ice which caused Mr. Richer to fall represents an isolated and exceptional condition. The absence of any sand in the vicinity of this patch of ice could be due to any number of reasons. I note that

the sidewalk in front of the fire hall also comprised part of the fire hall driveway. Possibly sand had been deposited in this area by the city crews but it had been removed by cars or trucks entering or exiting the fire hall premises. The absence of any sand could just as easily have resulted from an omission on the part of the city's machine operator.

[72] In the circumstances of this case, it is not necessary to make a finding as to whether this icy patch resulted from negligence on the part of a city employee. It is for the plaintiff to prove on the balance of probabilities that the City was grossly negligent with respect to maintaining its sidewalks. I find that the City's response to the thaw/freeze cycle which characterized the weather conditions on November 12 and 13, 2003 was reasonable and appropriate. The evidence is that once the temperature dropped to below freezing in the early morning of November 13, 2003, three experienced sidewalk operators were sent out in MT Trackless machines, and that all of the sidewalks had been cleared and sanded by mid afternoon. There were no other complaints of icy sidewalks recorded that day. In my view, even if I was to make a finding that a City employee had neglected to spread sand on the sidewalk in front of the fire station that day, such an omission would constitute mere negligence, and not gross negligence.

[73] The circumstances of this case are not unlike the circumstances which existed in the 1940 Ontario Court of Appeal decision in *Leeson v. the Village of Havelock*⁴ where at pages 343 to 344 the court stated:

The main question to be considered is whether the fact that the relatively small portion of walk where the plaintiff fell, that is the portion from the rear of the post office to the bare portion in front of the barber shop, was in a slippery condition and was not sanded does or does not under all the circumstances constitute gross negligence.

Keeping in mind that the adjective "gross" is not "devoid of meaning" and that the negligence to establish liability should be at least "great", per Osler J.A. in *Ince v. Toronto* (1900), 27 O.A.R. 414, or as said in *Kingston v. Drennan* (1897), 27 S.C.R. 46, "very great", I cannot think it does.

The corporation did not ignore the condition on March 16th but took reasonable steps to have the walks sanded. No complaint came to the corporation thereafter on which they should have acted respecting the particular place in question, and if at the time the plaintiff fell there was no sand on the spot where the accident occurred, whether due to this place having been missed, or for other reasons, I would hesitate to find that this would justify holding that the corporation is therefore guilty of gross negligence

[74] I find therefore that the Plaintiff has failed to prove gross negligence on the part of the City, and accordingly I dismiss the Plaintiff's claim.

⁴ *Leeson v. :Village of Havelock*, [1940] O.R. 331 (C.A.)

[75] The defendant has 45 days from the day this judgment is released to forward written submissions to me with respect to costs. The Plaintiff's response is due 15 days thereafter.

E.J. Koke

Released: August 4, 2011

CITATION: Richer v. Elliot Lake, 2011 ONSC 8017

COURT FILE NO.: 22692/A4

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:

Walter Richer

Plaintiff

– and –

The Corporation of the City of Elliot Lake

Defendant

REASONS FOR JUDGMENT

E.J. Koke

Released: August 4, 2011